

4.	26CV1652	EL DORADO MOBILE VILLAGE LLC V. ESTATE OF RHONDA LITTEL
PETITION FOR JUDGMENT TO DECLARE ABANDONMENT OF MOBILEHOME		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 4, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 7, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

Petitioner, El Dorado Mobile Village, LLC ("Petitioner"), filed a Petition for Judgment to Declare Abandonment of Mobilehome, Damages, Attorney's Fees and Costs on June 11, 2026. This Petition relies upon Civil Code §798.61 regarding the procedures for declaring a mobile home abandoned. Petitioner owns a mobile home park ("park"). Respondent, Estate of Rhonda Little, owns a mobile home which is located at the park.

On May 5, 2026, Petitioner issued a 30-day Notice of Belief of Abandonment pursuant to Civil Code §798.61(b). On June 11, 2026, Petitioner filed this Petition pursuant to Civil Code §798.61(c).

The statute requires copies of the Petition to be served on the homeowner/registered owner, and upon any known person having a lien or security interest of record. The notice shall be mailed by registered or certified mail with a return receipt requested. There is no proof of service showing service of the Petition on Defendant or on the county tax collector.

Civil Code of Procedure §798.61(c)(2) requires:

(2) To dispose of an abandoned mobilehome pursuant to subdivision (f), the management shall do all of the following:

(A) Declare in the petition that the management will dispose of the abandoned mobilehome, and therefore will not seek a tax clearance certificate as set forth in Section 5832 of the Revenue and Taxation Code.

(B) Declare in the petition whether the management intends to sell the contents of the abandoned mobilehome before its disposal.

(C) Notify the county tax collector in the county in which the mobilehome park is located of the declaration that management will dispose of the abandoned mobilehome by sending a copy of the petition by first class mail.

(D) Declare in the petition that management intends to file a notice of disposal with the Department of Housing and Community Development and complete the disposal process consistent with the requirements of subdivision (f).

Petitioner has failed to comply with the requirements of § 798.61(c)(2).

TENTATIVE RULING #4:

PETITIONER'S REQUEST IS DENIED WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.